

a British subject, and, whether he has made such an application or not, shall be deemed to be within the exceptions under the Military Service Acts, 1916 and 1917, if he is the holder of a certificate of exemption for the time being in force granted by the Ambassador or a duly authorised public Minister of that country in the United Kingdom :

- (c) Regulations issued under the Military Service Acts, 1916 and 1917, may provide for the establishment of special tribunals for dealing with applications or appeals for exemption in respect of men who are rendered liable to military service by virtue of this Act and for the appointment of additional members to tribunals when dealing with such applications or appeals :

- (d) Any British subject arriving in Great Britain from the contracting country after the date of an Order in Council applying this Act to the subjects of that contracting country shall, if not ordinarily resident in Great Britain, be deemed for the purposes of the Military Service Acts, 1916 and 1917, to be ordinarily resident in Great Britain as from the date of his arrival, unless he shows that the part of His Majesty's dominions in which he last resided was some part other than Great Britain.

(2) For the purposes of the limitation on the number of aliens who may serve together at any one time in any corps of the regular forces imposed by section ninety-five of the Army Act, subjects of a contracting country who become liable to military service by virtue of the application of this Act in respect of their country shall not be reckoned in that number.

(3) For the purposes of this Act the expression "convention" includes an agreement.

3. This Act may be cited as the Military Service (Conventions with Allied States) Act, 1917, and shall be included amongst the Acts which may be cited as the Military Service Acts, 1916 and 1917. Short title and citation.

CHAPTER 27.

An Act to provide facilities for expediting confirmation in Scotland to estates of persons serving in Naval or Military Service during the present War.

[2nd August 1917.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Procedure in petitions or applications for confirmation to estates of persons serving in the Naval or Military Forces of the Crown, and reported missing and presumed to be dead.

1.—(1) Where there is produced with any petition or application for confirmation as executor of any person who, at any time during the present war, has or shall have served in any of the Naval or Military Forces of the Crown a certificate or intimation issued by or on behalf of the Admiralty or the Army Council that a report of the death of any such person has been accepted for official purposes, or that such person was missing on a specified date, and that it has been presumed or concluded for official purposes that such person is dead, an oath or affirmation that to the best of the deponent's knowledge and belief such person is dead shall, for the purposes of such petition or application, be equivalent in all respects to an oath or affirmation that such person died on the date appearing in the certificate or intimation as the date on which he was missing or reported to have died: Provided always that between the last-mentioned date and the date of presenting such petition or application a period of not less than twelve months shall have elapsed, or that between the date when such certificate or intimation has been issued and the date of presenting such petition or application a period of not less than six months shall have elapsed.

(2) On any such petition or application being presented, the sheriff, without prejudice to any other powers or duties, may order intimation to the Admiralty or Army Council, and direct such advertisement (if any) as he shall think fit.

(3) Notwithstanding any provision in any Act, it shall not be necessary in any petition for appointment as executor of any person, in regard to whom such certificate or intimation, as hereinbefore referred to, shall have been issued and shall be produced along with such petition, to aver that such person died on any specified date; but it shall be sufficient to aver that such certificate or intimation has been issued, and that to the best of the petitioner's knowledge and belief such person is dead.

(4) The provisions of this section shall not apply to any petition or application presented by a creditor.

(5) The Court of Session may by Act of Sederunt alter or amend any of the forms of procedure required in connection with the appointment or confirmation of executors, whether prescribed by any Act or otherwise, and may provide any additional forms, and may make any regulations and prescribe any fees necessary for carrying the purposes of this Act into effect.

Short title and extent.

2. This Act may be cited as the Confirmation of Executors (War Service) (Scotland) Act, 1917, and shall apply to Scotland only.